

Performance Work Statement (PWS)

For

Concert Hall Rental for The US Army Strings 75th Anniversary For The United States Army Band “Pershing’s Own”

PART 1

GENERAL INFORMATION

1. Background: The U.S. Army Band “Pershing’s Own” will present one concert at The Terrace Theater at The John F. Kennedy Center for the Performing Arts. This concert will showcase the most prestigious military orchestra of the U.S. Army while bringing to the Washington D.C. community a special insight to the U.S. Army through musical entertainment. The concert is open to area students, veterans, active-duty personnel, and the general public. Due to the scope of this concert (which targets residents of the D.C. Metropolitan area, to include Fairfax Co., Arlington Co., Anne Arundel Co., Montgomery Co., Prince William Co., Loudoun Co., Prince Georges Co., and Baltimore City), a larger facility is necessary for supporting the concert than can be accommodated at Brucker Hall, Ft. Myer, VA (home of The U.S. Army Band.)

1.1 Objectives: Prepare and execute a concert for up to at least 500 patrons on September 18, 2025.

1.2 Description of Services/Introduction: The contractor shall provide all personnel, equipment, tools, materials, supervision, and non-personal services necessary to perform a concert hall rental for one (1) large ensemble performance for The United States Army Band “Pershing’s Own” as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

1.3 Scope:

- Seating Capacity for at least 500 patrons
- Hall access: 2:00 P.M. – 11:00 P.M.
- Large backstage warm-up area with adjacent restroom facilities
- Stage dimensions must meet minimum requirement of 30 feet depth by 55 feet width
- Concert Hall features require silent HVAC system to maintain appropriate temperatures with minimal impact on sound quality
- Green Room located off of stage right
 - 1 Star dressing room for Conductor(s)
 - 2 large dressing rooms for male and female orchestra members
- Easy load-in access
- Provide power as required

1.4 Period of Performance: The period of performance shall be from April 15, 2025, to September 22, 2025. Concert date is September 18, 2025.

1.5 General Information

1.5.1 Quality Control: The contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor’s quality control program is the means by which they assure that their work complies with the requirements of the contract. As a minimum, the contractor shall develop quality control procedures that address the areas identified in “Performance Requirements Summary.” After acceptance of the quality control plan, the contractor shall receive the contracting officer’s acceptance in writing of any proposed change to their QC system.

1.5.2 Quality Assurance: The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable quality level (AQL).

1.5.3 Recognized Holidays: The Contractor is not required to work on recognized federal holidays if they fall within this contract period.

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	Thanksgiving Day
Juneteenth	Christmas Day
Independence Day	

1.5.4 Hours of Operation/Place of Performance: The contractor is responsible for following the Performance Production Schedule during these large ensemble performances. The Contractor must at all times maintain an adequate work force for the uninterrupted performance of all tasks defined within this Performance Work Statement. When hiring personnel, the Contractor shall keep in mind that the ability and continuity of the work force are essential. The place of performance will be The Terrace Theater, The John F. Kennedy Center for the Performing Arts, 2700 F St., NW, Washington, D.C. 20566 and the hours of operation will be between 2:00pm to 11:00pm.

1.5.5 Type of Contract: The government anticipates award of a Firm Fixed Price Contract.

1.6.6 Security Requirements: Contractor personnel performing work under this contract do not require security clearances.

1.6.6.1 PHYSICAL Security: The contractor shall be responsible for safeguarding its own equipment while on site. The Contractors will provide security during The United States Army Band (TUSAB) rehearsal and show at the stage door.

1.6.11 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.6.12 Primary Point of Contact (POC). The Contractor shall provide an Event Coordinator who shall be responsible for the performance of the provided service or work. The name of this person and an alternate(s) shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The POC and alternate shall be designated in writing to the Contracting officer no later than 24 hours after contract award.

1.6.13 Key Personnel: The follow personnel are considered key personnel by the government: Event Coordinator. The Contractor shall provide an Event Coordinator responsible for the performance of the work. The name of this person shall be designated in writing to the contracting officer. The Event Coordinator has full authority to act for the Contractor on all contract matters relating to the daily operation of this contract. The Event Coordinator shall be available between the hours of 2:00 P.M – 11:00 P.M, performance day, and prior to load-in and during all times as prescribed in the load-in & production schedule.

1.6.14 Identification of Contractor Employees: All contract personnel working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed.

1.6.14.1. The Contractor shall not employ any person who is an employee of the United States Government if the employment of that person would create a conflict of interest.

1.6.16 Organizational Conflict of Interests: Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.6.17 Contracting Officer's Representative (COR): The COR will be nominated by the requiring activity and appointed by the contracting officer by separate letter. A copy of the COR's appointment letter will be sent to the awarded Contractor, identifying the designated duties and limitations of the COR. The COR is authorized to conduct oversight on any and all tasks or requirements and report observations to the Contracting Officer. The COR is not authorized to change any terms or conditions in the contract that pertain to cost, schedule, performance, quality, quantity, or other legal aspects of the resulting order.

PART 2 DEFINITIONS & ACRONYMS

ACOR – Alternate Contracting Officer's Representative

AFARS – Army Federal Acquisition Regulation Supplement

AR – Army Regulation

CCE – Contracting Center of Excellence

CFR – Code of Federal Regulations

CONUS – Continental United States (excludes Alaska and Hawaii)

COR – Contracting Officer Representative

COTR – Contracting Officer's Technical Representative

COTS – Commercial-Off-the-Shelf

DA – Department of the Army

DD250 – Department of Defense Form 250 (Receiving Report)

DD254 – Department of Defense Contract Security Requirement List

DFARS – Defense Federal Acquisition Regulation Supplement

DMDC – Defense Manpower Data Center

DOD – Department of Defense

FAR – Federal Acquisition Regulation

HIPAA – Health Insurance Portability and Accountability Act of 1996

IAW – In Accordance With

KO – Contracting Officer

NCR – National Capital Region

OCI – Organizational Conflict of Interest

OCNUS – Outside Continental United States (includes Alaska and Hawaii)

ODC – Other Direct Costs

PIPO – Phase In/Phase Out

POC – Point of Contact

PRS – Performance Requirements Summary

PWS – Performance Work Statement

QA – Quality Assurance

QAP – Quality Assurance Program

QASP – Quality Assurance Surveillance Plan

QC – Quality Control

QCP – Quality Control Program

TE – Technical Exhibit

TUSAB – The United States Army Band

Contractor: A supplier or vendor having a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

Contracting Officer: A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

Contracting Officer's Representative (COR): A representative from the requiring activity assigned by the Contracting Officer to perform surveillance and to act as liaison to the contractor

Defective Service: A service output that does not meet the standard of performance associated with it in the Performance Work Statement.

Deliverable: Anything that can be physically delivered but may include non-physical things such as meeting minutes.

Key Personnel: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

Physical Security: Actions that prevent the loss or damage of Government property.

Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

Quality Control: Those actions taken by a contractor to control the performance of services so that they meet the requirements of the PWS.

Quality Assurance: Those actions taken by the government to assure services meet the requirements of the Performance Work Statement.

Subcontractor: One that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Workday: The number of hours per day the Contractor provides services in accordance with the contract.

Work Week: Is defined as Monday through Friday, unless specified otherwise.

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3.1. Services: The Government will provide at least three stage crew to assist in the production set-up and tear down.

3.2. Equipment: The Government will provide a complete set to include instruments, video production, and audio production.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4.1. General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Part 3 of this PWS.

4.2. Secret Facility Clearance: N/A

4.3. Equipment: The Contractor shall provide the following to meet the requirements of this PWS.

- 40 chairs
- 40 music stands
- 1 conductor's podium
- 1 conductor's stand
- 1 lectern
- 1 3 x 8 ft. table
- 1 nine foot Steinway Grand piano with tuning services
- Lighting in the concert hall
- House sound:
 - Two (2) ceiling speaker clusters,
 - Use of up to three (3) microphones—SM57, SM58LC or wireless SM87, or equivalent.
- Electrical connectivity:
 - (2) 400 amps, 3 phase, 5 wire Stage Right
 - (1) 400 amps, 3 phase, 5 wire Stage Left
 - (1) 100 amps, 3 phase, 5 wire in follow spot booth
 - (1) 400 amps, 3 phase, 5 wire in lobby office

4.4. Labor: The Contractor shall provide the following to meet the requirements of this PWS.

- 2 Technicians – Production manager, staging, lighting, and sound technicians.

4.5. Trucking: N/A

4.6. Parking: The Contractor shall provide a parking area for 2x4 ton trucks and a crew cargo van.

PART 5 SPECIFIC TASKS

5.1. The contractor shall make the concert hall and dressing rooms available for Government use beginning at 2:00 P.M. on performance date or beginning at 2:00 P.M. on a mutually agreed upon alternate date, within 30 days before or after the contracted date of September 18, 2025.

5.2. The Contractor shall provide two dressing rooms, a conductor's room, and a green room for use by the conductor, soloists, and orchestra members.

5.3. The Contractor shall provide a room for storage of cases as well as general musician warm-up between the timeframe of 2:00 P.M. and 11:00 P.M.

5.4. The Contractor shall provide a stage manager to assist with stage set-up and tear-down.

5.5. The Contractor shall provide stage lighting support during the concert to include appropriate dimming of house lights.

5.6 The Contractor shall set up the stage per stage plot specifications and strike the stage upon completion of the concert.

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Method of Surveillance
PRS # 1. Contractor shall provide and assist in set-up and tear-down of all equipment on stage required to perform concert. PWS Para 5.1 & 5.2 & 5.3 & 5.4 & 5.5 & 5.6	The Contractor will ensure that all equipment is on stage and ready for set-up once the TUSAB stage crew arrives at site. This includes completion of the piano tuning.	Zero deviation from the standard.	100% Inspection
PRS # 2 Contractor shall identify and make available all dressing rooms and the storage/warm-up room at 2:00 P.M PWS Para 5.1 & 5.2 & 5.3 & 5.4 & 5.5 & 5.6	The contractor will ensure that the conductor, guest soloist(s) and musicians have adequate space for warm-up before the concert.	Zero deviation from the standard.	100% Inspection
PRS # 3 The Contractor shall have the house doors opened at the proper time and assist audience members as needed. PWS Para 5.1 & 5.2 & 5.3 & 5.4 & 5.5& 5.6	The contractor will ensure that audience members are seated. Any audience members permitted to sit in reserved seating will be shown their seats.	Zero deviation from the standard.	100% Inspection
PRS # 4 The Contractor shall provide power for all production assists. PWS Para 5.2	Provided power as described in PWS 4.3. Power must be in accordance with all state and local codes and installed IAW ESTA and OSHA requirements	Zero deviation from the standard.	100% Inspection

Types of Surveillance to select from:

Random Sampling: Appropriate for frequently recurring tasks. Evaluate randomly selected samples of the lot to determine the acceptability of the entire lot.

Random Inspection Guide, Method of surveillance, Lot size, Sample size, Performance requirement, Sampling procedure, Inspection procedure

100 Percent Inspection: Appropriate for tasks that occur infrequently. Inspect and evaluate performance each time task is performed

Periodic Surveillance: Evaluation of samples selected on other than 100% or statistically random basis. (i.e. monthly, quarterly, semi-annually etc.)

Validated Customer Complaint: Complaints must be validated.

TECHNICAL EXHIBIT 3

ESTIMATED WORKLOAD DATA

Below are the descriptions and estimated annual labor hours for the requirements of this PWS based on historical data. These hours do not project actual requirements for the new contract, nor does it reflect hours required of subcontractors. The contractor is responsible for proposing the appropriate

hours and labor mix to perform the requirements of this PWS. This data is provided for informational purposes only.

(Sample for the PWS Part 5 above)

ITEM	NAME	ESTIMATED QUANTITY	
1	Technician	8	Labor Hours
2	Technician	8	Labor Hours

(NOTE: ADD OTHER WORKLOAD DATA AS CONSIDERED APPROPRIATE.)